

Adam Hosmer-Henner (NSBN 12779)
Katrina Weil (NSBN 16152)
MCDONALD CARANO LLP
100 West Liberty Street, Tenth Floor
Reno, Nevada 89501
Telephone: (775) 788-2000
ahosmerhenner@mcdonaldcarano.com
kweil@mcdonaldcarano.com

Andrew T. Hambelton (*pro hac vice forthcoming*)
Michael D. McQueeney (*pro hac vice forthcoming*)
Elizabeth V. Young (*pro hac vice forthcoming*)
BLANK ROME LLP
1271 Avenue of the Americas
New York, NY 10020
Tel: (212) 885-5345
Andrew.Hambelton@blankrome.com
Michael.McQueeney@blankrome.com
Elizabeth.Young@blankrome.com

Attorneys for Defendant Theriva Biologics, Inc.

UNITED STATES DISTRICT COURT
DISTRICT OF NEVADA

MARK JOSEPH NEJMEH
Plaintiff,

v.

THERIVA BIOLOGICS, INC.,
Defendant.

Case No. 3:26-cv-00705-ART-CSD

**DECLARATION OF STEVEN
SHALLCROSS IN SUPPORT OF
DEFENDANT THERIVA BIOLOGICS,
INC.'S OPPOSITION TO EMERGENCY
MOTION FOR TEMPORARY
RESTRAINING ORDER AND/OR
PRELIMINARY INJUNCTION**

I, Steven Shallcross, declare as follows:

1. I am the Chief Executive Officer of Defendant Theriva Biologics, Inc. (“Theriva” or the “Company”). I am over the age of eighteen and competent to make this declaration.
2. I submit this declaration in support of Theriva’s Opposition to Plaintiff Mark Joseph Nejme’h’s Emergency Motion for Temporary Restraining Order, Preliminary Injunction, Expedited Discovery, and Order Shortening Time, ECF No. 2 (the “Motion”).

1 3. I make this declaration based on my personal knowledge, on my review of Theriva's
2 books and records maintained in the ordinary course of business, and on information provided to me
3 by Company personnel. If called upon to testify, I could and would testify competently to the
4 matters stated herein.

5 4. Theriva is a clinical-stage biotechnology company developing therapies designed to
6 treat cancer and related diseases in areas of high unmet medical need. Theriva's lead drug candidate
7 has shown promising results in clinical trials, and regulators in the United States and Europe have
8 recognized it with special designations for patients with pancreatic cancer and for a rare childhood
9 eye cancer.

10 5. Theriva has no product revenue. It funds years of costly clinical trials by raising
11 capital from investors. The pressure to fundraise has weighed on Theriva's share price, which has
12 fallen from \$0.43 in June 2025 to approximately \$0.22 as of market close on September 28, 2026.
13 Because of the Company's capital needs, every source of stockholder-approved capital, including the
14 New Warrants (defined below), is important to Theriva's ability to continue its research and
15 development work.

16 6. On October 16, 2025, Theriva entered into a warrant inducement agreement (the
17 "Inducement Agreement") with certain holders of existing Company warrants to purchase shares of
18 Theriva common stock (the "Existing Warrants"). Under the Inducement Agreement, the holders of
19 Existing Warrants exercised 8,092,280 Existing Warrants for cash at a reduced exercise price of
20 \$0.54 per share and, as consideration, received new warrants (the "New Warrants") to purchase up to
21 16,184,560 shares of Theriva common stock (the "New Warrant Shares"). The transactions
22 contemplated by the Inducement Agreement closed on October 17, 2025. Theriva disclosed the
23 Inducement Agreement and the New Warrants in its Form 8-K filed with the U.S. Securities and
24 Exchange Commission (the "SEC") on October 17, 2025, which attached the Warrant Inducement
25
26
27
28

1 Agreement as Exhibit 10.1 and the Form of New Warrant as Exhibit 4.1. A true and correct copy of
2 that Form 8-K, including its Exhibits 4.1 and 10.1, is attached hereto as **Exhibit 1**.

3 7. Under Section 713(a) of the NYSE American Company Guide and the terms of the
4 Inducement Agreement, the New Warrants could not be exercised unless and until Theriva obtained
5 stockholder approval of the issuance of the New Warrant Shares (“Warrant Exercise Approval”).
6 The Inducement Agreement obligated Theriva to seek Warrant Exercise Approval at a meeting held
7 within sixty days of closing and, if Warrant Exercise Approval was not obtained, to call a further
8 meeting every sixty days thereafter until Warrant Exercise Approval was obtained.
9

10 8. Consistent with that obligation, on November 10, 2025, Theriva filed with the SEC a
11 Definitive Proxy Statement on Schedule 14A for a Special Meeting of Stockholders to be held on
12 December 15, 2025 (the “December Proxy Statement”). A true and correct copy of the December
13 Proxy Statement is attached hereto as **Exhibit 2**.
14

15 9. Section 1.05 of Theriva’s Second Amended and Restated By-Laws (the “Bylaws”) provides that the presence in person or by proxy of the holders of shares having one-third (1/3) of the
16 voting power of the shares entitled to vote at a meeting of stockholders is necessary and sufficient to
17 constitute a quorum. The Bylaws were adopted on August 9, 2023, became effective on October 3,
18 2023, and were filed as Exhibit 3.1 to Theriva’s Form 8-K filed with the SEC on August 11, 2023.
19 A true and correct copy of that Form 8-K, including the Bylaws attached as Exhibit 3.1, is attached
20 hereto as **Exhibit 3**.
21
22

23 10. Theriva called to order a special meeting on December 15, 2025 at the Company’s
24 office at 9605 Medical Center Drive, Suite 270, Rockville, Maryland 20850. Plaintiff and two other
25 Theriva stockholders attended this meeting in person. As of the record date, 33,739,643 shares were
26 outstanding, and 4,414,253 shares were represented at the December 15, 2025 meeting. The shares
27 present in person or represented by proxy fell short of the one-third quorum (11,246,548 shares)
28 required by Theriva’s bylaws by approximately 6.8 million shares on December 15, 2025. A true

1 and correct copy of the Profile of Shares Voted report prepared by Broadridge, Theriva's proxy
2 services provider, for the December 15, 2025 special meeting is attached hereto as **Exhibit 4**.

3 11. The December Proxy Statement inadvertently stated that a quorum required
4 representation of thirty-four percent (34%) of the Company's outstanding shares. A 34% quorum
5 would have required 11,471,479 shares (as compared to 11,246,548 shares under a one-third quorum
6 requirement). Under either standard, the meeting fell short of a quorum by millions of shares. Each
7 of Theriva's subsequent proxy statements correctly stated the one-third quorum requirement.
8

9 12. During the December 15, 2025 meeting, Theriva representatives discussed the
10 possibility of setting the date for the meeting to December 22, 2025, but that date never went
11 forward.
12

13 13. Following the failure to convene the December 15, 2025 meeting, Theriva filed
14 additional definitive proxy statements and called special meetings for February 11, 2026, April 9,
15 2026, and June 5, 2026. A true and correct copy of Theriva's Definitive Proxy Statement on
16 Schedule 14A filed with the SEC on January 5, 2026, for the February 11, 2026 Special Meeting of
17 Stockholders is attached hereto as **Exhibit 5**. A true and correct copy of Theriva's Definitive Proxy
18 Statement on Schedule 14A filed with the SEC on March 16, 2026, for the April 9, 2026 Special
19 Meeting of Stockholders is attached hereto as **Exhibit 6**. A true and correct copy of Theriva's
20 Definitive Proxy Statement on Schedule 14A filed with the SEC on April 30, 2026, for the June 5,
21 2026 Special Meeting of Stockholders is attached hereto as **Exhibit 7**.
22

23 14. Each of these meetings also failed to reach a quorum, falling short by approximately
24 3.7 million shares on February 11, 2026, approximately 11.2 million shares on April 9, 2026, and
25 approximately 10.9 million shares on June 5, 2026. Specifically, at the February 11, 2026 meeting,
26 8,159,606 of 35,688,349 outstanding shares were represented, against a quorum threshold of
27 11,896,117 shares. At the April 9, 2026 meeting, 4,097,159 of 45,892,668 outstanding shares were
28 represented, against a quorum threshold of 15,297,556 shares. At the June 5, 2026 meeting,

1 4,388,641 of 45,892,668 outstanding shares were represented, against the same threshold of
2 15,297,556 shares. True and correct copies of the Broadridge Profile of Shares Voted reports for the
3 February 11, 2026, April 9, 2026, and June 5, 2026 scheduled special meetings are attached hereto
4 as **Exhibits 8, 9, and 10**, respectively.

5
6 15. Theriva publicly reported the failure of each scheduled special meeting to reach a
7 quorum. On the date of, or the day after, each non-convened special meeting, Theriva filed a Form
8 8-K with the SEC disclosing that it had called the special meeting to order, that there were not
9 present or represented by proxy a sufficient number of shares of Theriva common stock to constitute
10 a quorum, and that, as a result, Theriva was not able to convene the special meeting. In each Form
11 8-K, Theriva also disclosed that it would call a new meeting of stockholders to seek Warrant
12 Exercise Approval, as required by the Inducement Agreement. True and correct copies of each
13 Form 8-K filed with the SEC on December 15, 2025, February 12, 2026, April 9, 2026, and June 5,
14 2026, reporting the absence of a quorum at the December 15, 2025, February 11, 2026, April 9,
15 2026, and June 5, 2026 special meetings, are attached hereto as **Exhibits 11, 12, 13, and 14**,
16 respectively.

17
18 16. On June 29, 2026, Theriva filed with the SEC a Definitive Proxy Statement on
19 Schedule 14A for its 2026 Annual Meeting of Stockholders to be held on August 3, 2026 (the “June
20 Proxy Statement”). The June Proxy Statement included as Proposal 5 the proposal for Warrant
21 Exercise Approval (“Proposal 5”). A true and correct copy of the June Proxy Statement is attached
22 hereto as **Exhibit 15**.

23
24 17. A quorum was present at the August 3, 2026 annual meeting. As of the June 23, 2026
25 record date, 45,892,668 shares were outstanding, and 16,880,127 shares, or approximately 36.78%,
26 were represented at the meeting, exceeding the one-third quorum threshold of 15,297,556 shares.
27 Proposal 5 passed with 3,665,312 votes for and 2,267,592 votes against, a margin of 1,397,720
28 votes, with 123,397 abstentions and 10,823,826 broker non-votes. Consistent with the treatment of

1 non-routine proposals, the broker non-votes were not counted as votes entitled to vote on Proposal 5.
2 With abstentions counted as votes against, the proposal carried by 637,161 votes above the required
3 majority. A true and correct copy of the Broadridge Profile of Shares Voted report for the August 3,
4 2026 annual meeting is attached hereto as **Exhibit 16**. Theriva reported these results in its Form 8-K
5 filed with the SEC on August 4, 2026, a true and correct copy of which is attached hereto as **Exhibit**
6 **17**.

7
8 18. The June Proxy Statement provided a telephone number that stockholders and brokers
9 could call with questions about voting. Neither I nor, to my knowledge, anyone at Theriva or its
10 proxy services provider received any inquiry from any stockholder or broker, including Plaintiff,
11 concerning the routine or non-routine treatment of Proposal 5 before the August 3, 2026 annual
12 meeting.

13
14 19. As of the date of this declaration, no holder of a New Warrant has delivered to
15 Theriva a notice of exercise with respect to any New Warrant. As of the date of this declaration, no
16 New Warrant Share has been issued.

17 20. As of the market close on September 28, 2026, Theriva's common stock trades at
18 \$0.22 per share, well below the \$0.54 per share exercise price of the New Warrants.

19 21. Although Theriva does not concede that any inconsistencies in the June Proxy
20 Statement were material, misleading, or in violation of any applicable law, in the coming weeks
21 Theriva will call a meeting of stockholders at which its stockholders will again vote on Warrant
22 Exercise Approval using corrected proxy materials.

23
24 22. On May 22, 2026, Plaintiff sent Theriva a demand under NRS 78.257 for minutes,
25 raw proxy tabulations, and logs of his telephone calls with Theriva's counsel's relating to the
26 December 15, 2025 special meeting. He warned that if Theriva did not comply within five business
27 days, he would ask a court to "halt the upcoming June meeting." Attached hereto as **Exhibit 18** is a
28

1 true and correct copy of a letter from Plaintiff to Theriva dated May 22, 2026, demanding inspection
2 of certain corporate records under NRS 78.257.

3 23. Theriva rejected the demand on May 28, 2026, notifying Plaintiff that he lacked
4 standing because he did not own the 15% of outstanding shares that NRS 78.257(1) requires; that his
5 demand lacked the affidavit required by NRS 78.257(2); and that Theriva, as a current SEC
6 reporting company, is exempt under NRS 78.257(7). Theriva also explained that no minutes existed
7 because the meeting never convened for lack of quorum. Attached hereto as **Exhibit 19** is a true and
8 correct copy of a letter from Andrew Hambelton of Blank Rome LLP, counsel for Theriva, to
9 Plaintiff dated May 28, 2026, responding to Plaintiff's May 22, 2026 demand.
10

11 24. In June 2026, stockholder Paul Bernhardt sent substantially similar demands, and
12 Theriva rejected them on the same grounds on June 10 and June 24, 2026.
13

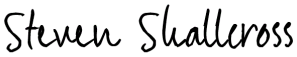
14 25. A list of the exhibits attached to this Declaration are included below for the Court's
15 reference.

Exhibit	Description
1	Theriva Biologics, Inc. Form 8-K, filed October 17, 2025, including Exhibit 4.1 (Form of New Warrant) and Exhibit 10.1 (Warrant Inducement Agreement)
2	Theriva Biologics, Inc. Definitive Proxy Statement on Schedule 14A, filed November 10, 2025, for the December 15, 2025 Special Meeting of Stockholders
3	Theriva Biologics, Inc. Form 8-K, dated August 11, 2023, including Exhibit 3.1 (Second Amended and Restated By-Laws of Theriva Biologics, Inc.)
4	Broadridge Profile of Shares Voted, December 15, 2025 Special Meeting of Stockholders
5	Theriva Biologics, Inc. Definitive Proxy Statement on Schedule 14A, filed January 5, 2026, for the February 11, 2026 Special Meeting of Stockholders
6	Theriva Biologics, Inc. Definitive Proxy Statement on Schedule 14A, filed March 16, 2026, for the April 9, 2026 Special Meeting of Stockholders
7	Theriva Biologics, Inc. Definitive Proxy Statement on Schedule 14A, filed April 30, 2026, for the June 5, 2026 Special Meeting of Stockholders
8	Broadridge Profile of Shares Voted, February 11, 2026 Special Meeting of Stockholders

9	Broadridge Profile of Shares Voted, April 9, 2026 Special Meeting of Stockholders
10	Broadridge Profile of Shares Voted, June 5, 2026 Special Meeting of Stockholders
11	Theriva Biologics, Inc. Form 8-K, dated December 15, 2025
12	Theriva Biologics, Inc. Form 8-K, dated February 12, 2026
13	Theriva Biologics, Inc. Form 8-K, dated April 9, 2026
14	Theriva Biologics, Inc. Form 8-K, dated June 5, 2026
15	Theriva Biologics, Inc. Definitive Proxy Statement on Schedule 14A, filed June 29, 2026, for the August 3, 2026 Annual Meeting of Stockholders
16	Broadridge Profile of Shares Voted, August 3, 2026 Annual Meeting of Stockholders
17	Theriva Biologics, Inc. Form 8-K, filed August 4, 2026, reporting the August 3, 2026 Annual Meeting voting results
18	Letter from Plaintiff to Theriva dated May 22, 2026, demanding inspection of certain corporate records under NRS 78.257
19	Letter from Andrew Hambelton of Blank Rome LLP, counsel for Theriva, to Plaintiff dated May 28, 2026, responding to Plaintiff's May 22, 2026 demand

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on September 29, 2026, at Rosslyn, Virginia.

DocuSigned by:

57D43E6682AE4D1...

Steven Shallcross
Chief Executive Officer
Theriva Biologics, Inc.